not expressing itself in a calm way.

MS CLAY: I said that I regret the government seems unable to express themselves in a calm way. I am happy to withdraw that.

What we seem to be debating about is Labor and the Liberals saying that we have the best environmental standards in the country, we have closed-loop water, we are only going to use water that we do not need for other purposes and we will use it sustainably, we will only be using 100 per cent renewable electricity that we do not need for other purposes as we electrify, moving in to a hotter climate and needing more electricity—we are told that Canberra already does this, yet these amendments have removed all of those regulatory requirements. It is hard for me to understand why they are stating that we need to lock these in in regulatory requirements if we already do them. Why does that need to be removed from this? It is quite difficult to understand.

We have amendments that say we will have transparency around these issues. Having information around them is good. Having information is not the same thing as saying we will only use water and electricity that we do not need for other purposes and we will use it sustainably. That is the minimum standard. Having transparency just means you report after the fact how you did it. They are actually two different things.

We do not understand why government would not consider levies or other ways to get public benefits within our community from data centres. We hear that there are likely to be jobs—that is fantastic to hear—but we are looking at taxing. We saw a health levy last year on every household. We are putting up rates. The Greens have put up a big corporations tax that the government has enacted. We are looking at lots and lots of revenue opportunities from lots and lots of different sources. Why would we not consider revenue opportunities here for the territory rather than simply facilitating an industry that is the quickest growing in the economy at the moment without considering local benefits? Why does this need to be edited out?

The most chilling thing that has been edited out of these amendments, though, as Miss Nuttall pointed out, is First Nations consultation. If we are talking about making decisions on land, particularly land that is not currently used for other purposes, we have to have First Nations consultation in there. If we are not letting First Nations people lead, we do not even know enough about cultural sites and cultural uses to be able to make those decisions for other people. We should not be doing that.

The amendments here from the Chief Minister remove the fact that the Canberra community is concerned about this. Why are Labor and the Liberals stating that the Canberra community is not concerned? They are concerned. That does not mean you run away and hide from those concerns; that means you engage with them in a really great, rational way. You listen to the concerns, you work through the concerns, you change the way you are doing things, you make sure you have got good protections, you engage with the concerns. Why are we editing out the fact that the Canberra community is concerned about data centres? That is absolutely obvious for anyone who has been watching.

I am finding this debate baffling, but I think maybe this is an indication of the fact that we have two parties that do not even want to acknowledge there are community

concerns is possibly why a lot of people in the community are turning away from those two parties.

MR COCKS (Murrumbidgee) (5.54): This is going to be a bit surreal. Usually when I stand up and reflect on what the Chief Minister has to say I am either disagreeing with what he has said—a long time ago—but pointing out how much he has failed or I am pointing out that he is on the wrong track. Today, I am afraid I have to agree with a whole lot of what he has just said. I would like to try and give him some faith that someone at least is paying attention to what is being said.

I have all four amendments as well as the original text of this motion arrayed in front of me. I think actually I will try and give some context to something that Mr Barr raised, because he seems to be unsure why it was that indeed the Greens seemed unable to address the context of his amendment and the context of his comments. I think it actually comes through in something that Miss Nuttall said, because I think Miss Nuttall may have let the cat out of the bag when she said that actually this is not about data centres. I think she may have let the cat out of the bag when she suggested that perhaps it is about who gets the profits. She had a lot to say about tech bros. I get it; they are an easy target. But that is a pretty dangerous way to make a policy. The politics of envy is dangerous. It means you can make some really bad decisions. That is absolutely exemplified in where we would be heading were these amendments to get up.

The amendment that the Greens have presented and Mr Emerson has so passionately backed—actually what that would do is make it so that only the big data centres could navigate such a complicated and strict regulatory regime by simply including a specific requirement that they must use closed loop. I also want to point out that in this place I believe there is one qualified engineer with the Greens, but there is no qualified engineer with expertise in data centres or expertise in heating—full expertise in all of the electricals required. The reason I make that point is because innovation depends on flexibility. If you restrict things too much, you stop the innovation. Just that one little clause in this motion would actually—if you have that positive requirement, they must use this thing—restrict some really good, innovative approaches.

Hetzner—I think they are in Germany and Finland—are an amazing company. They are a pretty small business. They are not one of the big guys. They have these modular data centre construction approaches with high server utilisation. They reuse waste heat to warm offices. They use onsite renewable generation, renewable electricity, highly efficient power systems and hot-cold aisle separation to stop cooled air and heated air mixing, but they do not use water. They do not use water cooling at all. This is an entirely air-cooled facility. They are fantastic. They custom-build servers and data resources for small and big businesses around the world.

If you clamp down on data centres so much that they can only fit through this one little door that you craft, then you actually shut down the little guys; you shut down the innovative approaches. That is the sort of thing that we are hearing from the Greens and Mr Emerson. When you take a technical issue and you make the technical specifics political instead of enabling the experts in the public service, the experts in industry and the experts in the community to be the ones who are working together to create the way forward, then we have got a problem, because it is working with those groups together

that you can actually find sensible ways forward, a way that we can actually utilise these data centres and build the economy that we are going to be facing tomorrow. The economy is transforming very quickly. If we do not take steps to be at the forefront of it, we will be left behind.

Just imagine if you had used this approach of shutting down all sorts of innovation through overly strict regulation with the solar industry. What if you had a reactionary approach and said you can only ever put solar on rooftops? What if you had a reactionary approach to wind generation and said you cannot put wind generation in forests, you cannot create access to wind turbines through forests? Australia would not be in the position it is now in terms of renewable energy generation. This is why I was so pleased to see the amendment that came from Mr Milligan, because it strikes a healthy balance, supporting the way forward and making sure we can actually get a future which is both sustainable and prosperous.

Question put:

> That **Mr Emerson's** amendment to **Miss Nuttall's** proposed amendment to **Mr Barr's** proposed amendment to **Mr Milligan's** proposed amendment be agreed to.

The Assembly voted—

Ayes, 6	Noes, 15	
Andrew Braddock	Andrew Barr	Suzanne Orr
Fiona Carrick	Peter Cain	Mark Parton
Jo Clay	Leanne Castley	Michael Pettersson
Thomas Emerson	Tara Cheyne	Chris Steel
Laura Nuttall	Ed Cocks	Rachel Stephen-Smith
Rebecca Vassarotti	Jeremy Hanson	Caitlin Tough
	James Milligan	Taimus Werner-Gibbings
	Deborah Morris	

Question resolved in the negative.

Mr Emerson's amendment to **Miss Nuttall's** proposed amendment to **Mr Barr's** proposed amendment to **Mr Milligan's** proposed amendment negatived.

Question put:

> That **Miss Nuttall's** proposed amendment to **Mr Barr's** proposed amendment to **Mr Milligan's** proposed amendment be agreed to.

The Assembly voted—

Ayes, 6	Noes, 15	
Andrew Braddock	Andrew Barr	Suzanne Orr
Fiona Carrick	Peter Cain	Mark Parton

Jo Clay	Leanne Castley	Michael Pettersson
Thomas Emerson	Tara Cheyne	Chris Steel
Laura Nuttall	Ed Cocks	Rachel Stephen-Smith
Rebecca Vassarotti	Jeremy Hanson	Caitlin Tough
	James Milligan	Taimus Werner-Gibbings
	Deborah Morris	

Question resolved in the negative.

Miss Nuttall's proposed amendment to **Mr Barr's** proposed amendment to **Mr Milligan's** proposed amendment negatived.

Mr Barr's amendment agreed to.

Question put:

That **Mr Milligan's** amendment, as amended, be agreed to.

The Assembly voted—

Ayes, 15		Noes, 6
Andrew Barr	Suzanne Orr	Andrew Braddock
Peter Cain	Mark Parton	Fiona Carrick
Leanne Castley	Michael Pettersson	Jo Clay
Tara Cheyne	Chris Steel	Thomas Emerson
Ed Cocks	Rachel Stephen-Smith	Laura Nuttall
Jeremy Hanson	Caitlin Tough	Rebecca Vassarotti
James Milligan	Taimus Werner-Gibbings	
Deborah Morris		

Question resolved in the affirmative.

Mr Milligan's amendment, as amended, agreed to.

MISS NUTTALL (Brindabella) (6.09): In closing, I heed Mr Barr's point that no-one is listening to each other. I will not talk about whose press release started that one, but he makes a genuine point. I have listened to Mr Barr's words. I have heeded them. I appreciate the extra detail and the slow voice that he and other members used at times to make sure I understood. I still did not hear in those words a reason that he would oppose Mr Emerson's or our amendments.

Our amendments did not reinsert a moratorium, so I do not understand what the sticking point was. If it was on the arrival time of said amendments, we had limited time, because despite providing them to Mr Barr a week ago, we got his proposed amendments yesterday afternoon, I believe, after asking. Perhaps nuance was lost via email, but we did our best. One day, I hope to understand, because I am earnestly trying to do so.

Going to Mr Cocks's point, if they had looked at the wording in our original motion, it asked that we "implement best practice water and energy efficiency as standard, currently closed-loop water use". There were options there, but that is okay.

This might be one of the most disappointing days that I have had in my three years in the Legislative Assembly. All over the world, communities of all political persuasions, from MAGA folks in rural Oklahoma to civil rights groups in South Africa, are speaking out against the deluge of data centres mushrooming in their midst. Canberra has an opportunity not just to avoid the worst, but to create the best.

Here is an investment opportunity for you: turn Canberra into a place where regional, national and international delegations come to learn about the right way to bring data centres into a community, about how to not just minimise the damage, but actively use the data centre to improve both our budget bottom line and our quality of life, and learn how to say no to any data centre that is not offering enough to our community.

I am sorry, but those delegations are not going to come now. Politicians, activists and public servants from elsewhere in Australia and across the globe will not be poring over our legislation and frantically taking notes. Tourists will not be complimenting our city on how well we have done at keeping the ugliness of data centres out of sight.

Today, here in this Assembly, a majority, made up of both Labor and Liberals, have chosen to hand off all that potential opportunity to some other, more enlightened jurisdiction—maybe Queensland. A majority, made up of both Labor and Liberal, have turned their back on the Canberra pride that we have justifiably felt over other innovations: our renewable energy and steps to get off gas, our regenerating wetlands, our response to COVID, our safe, clean city.

It is such a lost opportunity. The ACT could have been real leaders on this. Instead, the Liberals have given their usual kneejerk support to the big end of town—actually, not even just the big end of this town, the big end of the planet. They are clearly happy for the ACT to become a colonial outpost for the Musk, Altman and Bezos empires. Labor hid behind its usual fig leaf of being ever so slightly less terrible than the Liberals.

Only the Greens, and Mr Emerson and Ms Carrick, actually did the work and will put Canberrans ahead of tech billionaires. Thank you to both of them for having humour, heart and integrity in this debate. Rest assured, we will do our utmost to make sure the electorate takes note of who was actually on their side.

With these amendments coming from Labor and Liberals now a foregone conclusion, the ACT Greens will be voting against our own motion, because it takes us backwards. In resolving to "engage with major domestic and international data centre operators", it undoes what I thought was the Chief Minister's genuine hard work to make us a leading jurisdiction. If I was a little bit pettier, I would sit down with my laptop and photoshop by hand a dodgy picture of a major data centre onto the western edge, with a still tasteful graphic of the Chief Minister in a hard hat.

Mr Speaker, you can see that the thought has crossed my mind. But that is not how the Greens want to do politics. We are not here to shitpost and score political points. Our community would be embarrassed with us if we did that, and they would lose faith in